

mortgagor) was prejudiced or harmed; and (3) in cases where the trustor or mortgagor challenges the sale, the trustor or mortgagor tendered the amount of the secured indebtedness or was excused from tendering.” (*Miles v. Deutsche Bank National Trust Co.* (236 Cal.App.4th 394, 408.)

Initially, Plaintiffs admitted that “Defendants did not conduct a Wrongful Foreclosure....” (RFA 17, all caps removed.) This alone is sufficient to grant Defendants’ motion as to this cause of action.

In addition, this cause of action is also based on the Defendants’ alleged failure to give proper notice of the NOD and NoTS. As outlined above, Defendants provided proper notice by mail – and Plaintiffs’ claims to have not received the notices are irrelevant. (See *Knapp*, supra, 123 Cal.App.4th at 88 quoting *Lupertino*, supra, 35 Cal.App.3d at 746-47.)

Based on the above, Defendants have met their initial burden showing of the nonexistence of any triable issue of material fact. Plaintiffs have failed to meet their corresponding burden of production to make a prima facie showing of the existence of a triable issue of material fact as to this cause of action.

Cancellation of Instruments

Again, this cause of action is also based on the alleged failure to provide proper notice of the NOD and NoTS.

Plaintiffs admitted that the Loan Note, Deed of Trust, and Forbearance Agreement were all serviced in compliance with all applicable laws. (RFAs 7, 12.) They also admit that Defendants did not wrongfully foreclose. (RFA 17.)

In addition to these admissions, as outlined thoroughly above, Defendants have shown that all notices were properly sent – which is all that is required. Based on the above, Defendants have met their initial burden showing of the nonexistence of any triable issue of material fact. Plaintiffs have failed to meet their corresponding burden of production to make a prima facie showing of the existence of a triable issue of material fact as to this cause of action.

Declaratory Judgment

The declaratory judgment cause of action seeks a declaration indicating that the NOD and NoTS were improperly recorded and not properly served. This cause of action fails for all the same reasons outlined above.

Conclusion

Based on the above, Defendant’s Motion for Summary Judgment is **granted**.

14. 9:00 AM CASE NUMBER: C24-03464
CASE NAME: ANITA HERNANDEZ VS. GOLDEN GATE BELL LLC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: GOLDEN GATE BELL LLC
TENTATIVE RULING:

Defendant Golden Gate Bell, LLC moves to compel arbitration in each of two related cases brought by Plaintiff Anita Hernandez. In a class action filed on October 18, 2024 (C24-02813), Defendant moves to compel arbitration of Plaintiff's individual Labor Code claims and to dismiss the class claims. In a PAGA action filed on December 20, 2024 (C24-03464), Defendant moves to compel arbitration of Plaintiff's

individual claims for civil penalties under the PAGA and to stay non-individual claims pending the outcome of that arbitration.

The motions are **continued to September 16, 2026 at 9:00 a.m.** for supplemental briefing.

Background

Defendant filed these motions on October 20, 2025. The motions are supported by the declaration of Junior Bolanos, Director of Human Resources for Diversified Restaurant Group RSC, LLC, described as a third-party provider of payroll and HR services to Defendant. Bolanos describes Defendant's use of the TalentReef electronic onboarding system, a password-protected platform that restricts the ability of anyone but the employment candidate to access and sign onboarding documents. Bolanos authenticates an arbitration agreement bearing Plaintiff's electronic signature dated June 15, 2023.

Plaintiff filed opposition on July 7, 2026, supported by her own declaration. Plaintiff denies electronically signing the agreement, and states that an employee named "Giovani" asked her for certain background information when she arrived for work. (Hernandez Decl., ¶ 3; see also *id.*, ¶ 4 ["I did not complete any paperwork electronically during my hiring process with Defendant."].) Plaintiff identifies what she claims are errors in the June 15, 2023 application, and in the same paragraph states she "**did** complete an electronic application for Defendant." (*Id.*, ¶ 6 [emphasis added].)

Defendant filed a reply on July 22, 2026, supported by a supplemental declaration of Bolanos and a declaration of Giovanni Saligan, the General Manager of the restaurant where Plaintiff worked. These declarations present matters not addressed in the moving papers. They state that Plaintiff was originally hired for Defendant on September 9, 2021 and electronically signed an arbitration agreement at that time, and they attach that agreement and related documents. They further state that Plaintiff approached Saligan in or around May 2023 asking that her onboarding records be corrected, that the TalentReef platform did not permit the requested modification, that a new onboarding was initiated for that purpose, and that Saligan watched the Plaintiff execute the June 15, 2023 onboarding documents on her own device. The supplemental declaration also states that the identifying information Plaintiff self-reported in 2021 differs from the information provided in 2023.

On July 23, 2026, Plaintiff filed objections to the supplemental Bolanos declaration and the Saligan declaration, asserting that this evidence is untimely and improperly submitted for the first time on reply.

The proponent of an arbitration agreement is not required to establish the authenticity of an electronic signature until the opposing party places it in issue, and supplemental declarations submitted on reply for that purpose are proper. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060-1061.) Here, however, the reply goes further than authentication. It asserts a prior period of employment, a prior arbitration agreement, Plaintiff's own request that her employment records be corrected, and a percipient witness to the 2023 events.

Where enforceability turns on which of two conflicting factual accounts is credited, the court sits as the trier of fact. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413-414.) The court declines to resolve the enforceability issue before Plaintiff has had the chance to respond to Defendant's evidence presented with the reply.

Order

The hearing on this motion is **continued to September 16, 2026 at 9:00 a.m. in Department 16.**

No later than **August 10, 2026**, Plaintiff may file a supplemental opposition brief not exceeding seven pages, together with any declarations and exhibits responding to the supplemental declaration of Junior Bolanos and the declaration of Giovanni Saligan filed with Defendant's reply.

No later than **August 24, 2026**, Defendant may file a supplemental reply brief not exceeding seven pages. No further declarations or evidence may be submitted with the supplemental reply.

15. 9:00 AM CASE NUMBER: C24-03533

CASE NAME: CHARLES KASPER VS. KARINA KASPER

HEARING ON DEMURRER TO: TO THE COMPLAINT

FILED BY: KASPER, JUSTUS

TENTATIVE RULING:

This is Justus Hlady-Kasper's demurrer to the complaint. It is unopposed and well taken.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]

Moreover, California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See the court's website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

The demurrer is sustained. Plaintiff shall have thirty days leave to amend from the date he is served